

Defendants. (Van Hooser Decl., ¶¶ 7-8, Exhs. A-C.) Accordingly, the court may reasonably ascertain the parties' mutual intent to be bound by the Arbitration Agreement, and the failure to specifically identify "the Company" does not render the agreement fatally ambiguous.

Superseded Agreement?

Next, Plaintiff argues that the Arbitration Agreement was superseded by a subsequent written employment agreement dated 8/22/22 ("Employment Agreement").

The execution of a contract in writing, whether the law requires it to be written or not, supersedes all the negotiations or stipulations concerning its matter which preceded or accompanied the execution of the instrument. (Civ. Code, § 1625.)

Here, the Employment Agreement provides, in pertinent part:

16. Entire Agreement. Employee agrees that Employee does not rely, and has not relied, upon any representation or statement not set forth herein by the Company or any of its agents, representatives, or attorneys. This Agreement contains the entire and exclusive agreement of the Parties hereto on any of the subjects described herein, whether written or oral. ***This Agreement supersedes any prior agreements*** between Employee and the Company ***on any of the subjects described herein***, whether written or oral, and cannot be varied, contradicted, or supplanted by evidence of any prior or contemporaneous discussion, correspondence, or oral or written agreements, arrangements, or memoranda of any kind. This Agreement may not be amended or modified otherwise than by a written agreement executed by the Company and Employee or their respective successors and legal representatives.

(Van Hooser Decl., Exh. C [Employment Agreement, p. 6, emphasis supplied].)

Importantly, the Employment Agreement does not mention arbitration, dispute resolution, waiver of jury trial, or the forum for resolving employment-related disputes. Instead, it addresses substantive employment terms such as Plaintiff's position, duties, compensation, confidentiality obligations, and at-will employment status. Because the integration clause is limited to the "subjects described herein," it does not supersede the separately executed Arbitration Agreement.

Plaintiff's reliance on *Grey v. American Management Services* (2012) 204 Cal.App.4th 803 is misplaced. Unlike *Grey*, where the superseding agreement itself contained a narrower arbitration provision, the Employment Agreement here is entirely silent regarding arbitration and dispute resolution. Moreover, the integration clause is expressly limited to the "subjects described herein."

Not Properly Authenticated?

Plaintiff attests that she never received, reviewed, or signed the purported Arbitration Agreement and challenges the authenticity of the signature appearing on the document. (Milman Decl., ¶¶ 3–5.) Milman declares under penalty of perjury that while the signature on the 8/22/22 Employment Agreement "is unmistakably my own", the signature contained in the purported Arbitration Agreement "does not resemble the way I sign my name." (Milman Decl., ¶ 6.)

Interestingly, the signatures on the employment agreement and the arbitration agreement appear more similar to each other than the signature now presented in Plaintiff's 5/1/26 declaration. Further, multiple signatures purporting to be from Plaintiff have been presented and Defendants submitted a declaration from Stephen Van Hooser, custodian of personnel and employment records, attesting that he reviewed Plaintiff's personnel file maintained in the ordinary course of business, that it was Defendants' regular practice to provide new hires with the Arbitration Agreement and related onboarding documents, and that the signed Arbitration Agreement was contained in Plaintiff's personnel file. (Van Hooser Decl., ¶¶ 5–8, Exhs. A-B.) Defendants further authenticated the